

EZCA

INDIAN REGULATORY FRAMEWORK

📖 KEYWORDS MINI REVISION FOR YOUR LAST MOMENT REVISION

Sources of Law | Judicial System | Regulatory Bodies | Key Articles

1. INTRODUCTION

Purpose of Regulatory Framework

- Provides uniform rules & regulations
- Governs conduct of people in personal & business relationships

Why CA Studies Law?

- **CA = First Level Legal Advisor:** Advises management & clients on legal matters
- **Threshold Knowledge:** Needs basic legal knowledge to function effectively

2. HISTORICAL BACKGROUND

Law / Code	Location	Period / Year	Significance
Code of Hammurabi	Babylon	1792 BC – 1758 BC	Oldest written law in history — King Hammurabi
Twelve Tables	Rome	450 BC	12 bronze tablets — protect rights & provide remedy for wrongs

3. MEANING OF LAW ★★★

Law	Set of obligations & duties imposed by the Government to secure welfare & justice for all.
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Indian Legal Framework Reflects

Social Aspects	Political Aspects	Economic Aspects	Cultural Aspects
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4. SOURCES OF LAW ★★★★★

Constitution	Statutes	Judicial Precedents	Customs & Usages
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Source	Description
Constitution	Supreme law of India — basis of all other laws
Statutes	Laws made by Parliament or State Legislatures
Judicial Precedents	Decisions of courts — forms case law
Customs & Usages	Traditional accepted practices recognised by law

5. GOVERNMENT OF INDIA ACT, 1935

Feature	Detail
Role	Precursor to the Constitution of India
System Changed	Unitary → Federal system
Federal Court Established	1937
Jurisdiction of Federal Court	Appellate, Original & Advisory

6. CONSTITUTION OF INDIA ★★★

Effective From

26 January 1950 — Provides framework of democracy, fundamental rights & duties, powers of governments.

Three Legislative Lists ★★★

List	Who Makes Laws	Example
Central List (Union List)	Central Government only	Income Tax, Defence
State List	State Governments only	Agriculture, Police
Concurrent / Joint List	Both Centre & State can legislate	Stamp Duty, Education

7. PROCESS OF MAKING LAW ★★★★★

Step 1 — Bill	Law proposed in Parliament as a BILL
	▼
Step 2 — Lok Sabha	Bill passed in Lok Sabha (Lower House)
	▼
Step 3 — Rajya Sabha	Bill passed in Rajya Sabha (Upper House)
	▼
Step 4 — Assent	President gives assent to the Bill
	▼
Step 5 — Gazette	Published in the Official Gazette of India
	▼

Step 6 — Effective

Applicable from effective date mentioned in notification

**Final — ACT**

Becomes an Act of Parliament

8. TYPES OF LAW ★★★★★**Criminal Law****Civil Law****Common Law****Principles of Natural Justice****9. CRIMINAL LAW ★★★**

Aspect	Detail
Deals With	Public wrongs — violation of law — punishment
Governed By	IPC 1860 (Indian Penal Code) + CrPC 1973 (Code of Criminal Procedure)
IPC defines	Crimes, their nature & punishments
CrPC defines	Procedure to be followed in criminal trials
Examples	Murder, Rape, Theft, Fraud, Assault, Cheating

10. CIVIL LAW ★★★

Aspect	Detail
Deals With	Disputes between individuals / organisations
Focus	Dispute resolution — NOT punishment
Governed By	CPC 1908 (Code of Civil Procedure)
Types	Contract law, Family law, Property law, Law of Tort
Examples	Breach of contract, Non-delivery of goods, Landlord-tenant disputes, Defamation

11. COMMON LAW ★★★**Common Law**

Law based on judicial precedent / case law. Article 141 — Supreme Court decisions are binding on all courts in India.

Doctrine of Stare Decisis ★

Meaning: 'To stand by what is decided'. Courts must follow earlier decisions on similar facts.

12. PRINCIPLES OF NATURAL JUSTICE ★★★★★

1

Nemo Judex in Causa Sua

Meaning: No one shall be a judge in their own case. Rule against bias or prejudice.

2

Audi Alteram Partem

Meaning: Hear the other party. Every person must be given a fair hearing before a decision.

3

Reasoned Decision

Judgement must contain reasons — cannot be arbitrary.

Judgement CAN override Common Law — but CANNOT override a Statute**13. ENFORCEMENT OF LAW ★★★**

- ▶ After law is passed it must be enforced by Central or State Government
- ▶ Executive monitors whether law is being followed
- ▶ Ministries headed by Ministers — run by Civil Servants

14. MINISTRY OF FINANCE ★★★★★**Vitta Mantralaya**

Concerned with: Economy, Taxation, Financial legislation, Financial institutions, Capital markets & Union Budget.

Apex Controlling Authority of

Indian Revenue Service

Indian Audit & Accounts

Indian Economic Service

Indian Civil Accounts

Indian Cost & Mgmt Accounts

Departments Under Ministry of Finance ★★★

Department	Focus
Department of Economic Affairs	Economic policy & foreign investment
Department of Expenditure	Government spending & financial management
Department of Revenue	Tax administration — direct & indirect taxes
Department of Financial Services	Banking, insurance & financial sector
DIPAM	Disinvestment & public asset management
Department of Public Enterprises	Oversight of central public sector enterprises

15. MINISTRY OF CORPORATE AFFAIRS (MCA) ★★★★★

Feature	Detail
Concerned With	Companies Act 2013, Companies Act 1956, LLP Act 2008, IBC 2016

Regulates	Indian enterprises & corporate governance
Run By	ICLS (Indian Corporate Law Service) officers
Highest Post	DGCoA — Director General of Corporate Affairs

16. MINISTRY OF HOME AFFAIRS

Responsible For

Internal Security	Domestic Policy	Border Management	Official Language
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17. MINISTRY OF LAW & JUSTICE ★★★

Department	Deals With
Department of Legal Affairs	Legal matters of Government of India
Legislative Department	Drafting of bills & legislative activities
Department of Justice	Administration of justice & judicial appointments

18. SEBI ★★★★★

Feature	Detail
Full Name	Securities and Exchange Board of India
Type	Regulatory body for securities & commodity markets
Under	Ministry of Finance
Established	12 April 1988
Statutory Powers Granted	30 January 1992
Through	SEBI Act, 1992

19. RBI ★★★★★

Reserve Bank of India	Central Bank of India — regulates the banking system, controls & issues currency, manages payment systems & promotes economic development.
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Body	Full Form	Purpose
BRBNM ★	Bharatiya Reserve Bank Note Mudran	Prints currency notes — located at Nashik & Dewas
NPCI ★	National Payments Corporation of India	Established by RBI for payment & settlement systems

DICGC ★	Deposit Insurance & Credit Guarantee Corp.	Provides deposit insurance & credit guarantee
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20. IBBI ★★★★★

Feature	Detail
Full Name	Insolvency & Bankruptcy Board of India
Role	Regulator for insolvency proceedings in India
Established	1 October 2016
Through	Insolvency & Bankruptcy Code (IBC)
Covers	Individuals, Companies, LLPs, Partnership firms
Tribunals	NCLT (Companies/LLPs) & Debt Recovery Tribunal (Individuals)

21. STRUCTURE OF INDIAN JUDICIAL SYSTEM ★★★★★

Supreme Court	Apex court — established 26 January 1950 — 34 judges including CJI
	▼
High Court	One in every state — Article 214 — Appellate, Original & Supervisory jurisdiction
	▼
District Court	District Judge (Civil) & Sessions Court (Criminal) — pecuniary jurisdiction up to ₹2 crore
	▼
Metropolitan Court	Cities with population ≥ 10 lakh — Chief Metropolitan Magistrate = powers of Chief Judicial Magistrate

22. FUNCTIONS OF JUDICIARY ★★★

Interpretation of Acts & Codes	Dispute Resolution	Promotion of Fairness & Justice
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23. SUPREME COURT ★★★★★

Feature	Detail
Type	Apex / Highest Court of India
Established	26 January 1950
Head	Chief Justice of India (CJI)
Article 126	Related to appointment of Chief Justice
Present Strength	34 judges including CJI
Article 32 ★	Writ petition can be filed directly in Supreme Court

Binding Effect	Decisions binding on all High Courts & subordinate courts (Article 141)
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24. HIGH COURT ★★★★★

Feature	Detail
Article 214	Every state shall have a High Court
Jurisdiction	Appellate, Original & Supervisory
Article 226 ★	Writ petition can be filed in High Court
Article 227	Supervisory jurisdiction of High Court
Oldest High Court	Calcutta High Court — established 1862

25. DISTRICT & METROPOLITAN COURTS ★★★

Court	Deals With	Key Rule
District Court (District Judge)	Civil matters	Pecuniary jurisdiction: suits up to ₹2 crore
Sessions Court	Criminal matters	Same district judge acts as sessions judge
Metropolitan Court	Cities with population ≥ 10 lakh	Chief Metropolitan Magistrate = powers of Chief Judicial Magistrate

Jurisdiction

Power to control & decide a case. Territorial jurisdiction based on: Residence of defendant OR Location of property.

26. SUPER IMPORTANT ARTICLES ★★★★★

Article	Topic	Key Point
Article 32	Writ in Supreme Court	Right to move SC for enforcement of Fundamental Rights
Article 141	SC decisions binding	Decisions of Supreme Court are law of the land — binding on all courts
Article 214	High Court	Every state shall have one High Court
Article 226	Writ in High Court	HC can issue writs for any purpose (wider than Art.32)
Article 227	Supervisory Jurisdiction	High Court has supervisory jurisdiction over all subordinate courts

27. IMPORTANT YEARS & DATES ★★★

Event	Year
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Government of India Act	1935
Federal Court Established	1937
Constitution of India in effect	1950
Supreme Court Established	1950
SEBI Established	12 April 1988
SEBI Statutory Powers	30 January 1992
IBBI Established	1 October 2016

🔍 🔍. GOLDEN REVISION LINES

Law = Set of obligations & duties imposed by Government to secure welfare & justice

Parliament is the ultimate law-making body in India

Bill → Act after President's assent & Gazette notification

Criminal Law = Punishment | Civil Law = Dispute Resolution

Stare Decisis = Follow precedent — 'To stand by what is decided'

Supreme Court decisions are binding on all courts — Article 141

Article 32 = Writ in SC | Article 226 = Writ in HC

All the best! You've got this 🔍

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